number of daily new cases and the fact that community transmission was not yet taking place, it was possible for our health authorities to carry out contact tracing. But if the caseload was to significantly increase, efficient contact tracing would have to be done with the help of technology. Human contact tracing also had limitations of scalability due to limited human resources as well as overreliance on individual memory of the infected. Other limitations would also be the efficient marshalling of contact tracers, distrust from patients as well as exposure to the risk of violence from communities in which they are perceived as unwelcome invaders. Several countries had begun to rely on sophisticated technology for contact tracing which included South Korea, Japan, Taiwan and Vietnam. Eventually, 46 countries had begun to rely on contact tracing apps, despite uptakes remaining low, due to privacy concerns on data breaches as well as low awareness of the existence of the applications. However, the world over, there seemed to be a consensus that despite low usage, having a contact tracing app is a natural adjunct to the manual contact tracing efforts because small effects would accumulate over time.[12]

Not far behind, India had not only developed a sophisticated app but also a secure one: Aarogya Setu, which would use Bluetooth and in the absence of Bluetooth, global positioning system (GPS) to track the phones that a particular device would come in close contact with. Although, the developers maintain that Bluetooth is far more accurate than GPS. The app would alert not just the health authorities but also individuals who could have possibly come in contact with an infected individual, so that they can look out for COVID-19 symptoms or self-isolate. As long as the data accumulated by the app remained on the NIC server, it would be anonymous and secure, as per the design. The security audit was conducted by the Indian Institute of Technology (IIT) Madras.

Once the interface was ready, the team made a presentation to the PMO for consent. As the team put it, ‘The effectiveness of the app would be directly proportional to the number of users using it’. India had about 700 million smartphone users and it would be imperative to get as many of them to download and use the app. The question arising thus would be: could the use of this app be mandated? What kind of encroachment on privacy would mandating an app like Aarogya Setu entail? As per a seminal judgement in the Supreme Court, Justice D.Y. Chandrachud had stated, ‘If the state preserves the anonymity of the individual, it could legitimately assert a